

UAB

Universitat Autònoma de Barcelona

PLEC OF ADMINISTRATIVE CLAUSES

OPEN PROCEDURE

Accord mark no. CONTR-108/2024

**AGREEMENT MARC FOR THE EXECUTION OF THE DESIGN SERVICE
GRÀFIC I PRODUCTION OF PROMOTIONAL ELEMENTS OF THE
UNIVERSITAT AUTÒNOMA DE BARCELONA, I DE LES ENTITATS DE
THE UAB CORPORATION**

QUADRE RESUM of the plec of administrative clauses

Information downloaded from contractaciopublica.gencat.cat/perfil/uab documentation (profile of contractant):

Tender advertising:
Official Journal of the European Union (OJEU): 16/12/2024

UAB contractant profile: 12/18/2024

Final presentation of proposals: 01/20/2025, at 1:00:00 p.m.

Form of presentation: electronic, using the Digital Envelope

Tender procedure with various subjective and objective valuation criteria

Public acts of opening of envelopes:
Envelope C: it will be convened after the evaluation of envelope B

A. Purpose of the agreement:

A.1. Description: Agreement with the approval of a single supplier for the execution of the service consisting of the creative task, the design, the elaboration of style guidelines and the development and production of all the elements and necessities, in any format, to donate support to the communication and promotion strategies of the company. Universitat Autònoma de Barcelona (UAB), with the following entities of the UAB Corporation (in Spanish, FUAB):

- Fundació Universitat Autònoma de Barcelona MP (FUAB)
- Fundació Autònoma Solidària (FAS)
- Fundació Hospital Clínic Veterinari MP (HCV)
- Fundació salut i Envel·liment (FSIE)
- Escola d'Idiomes Moderns casa Convalescència, SLU
- Vila Universitària, SL

A.2. Divided into lots: It is not divided into lots because the independent implementation of the various services included in the object of the contract would make correct execution difficult from a technical point of view. However, since the risk for the correct execution of the contract comes from the nature of its object, involving the need to coordinate the execution of the different services, it may be impossible because it is divided into lots and the execution by a plurality of different contractors.

A.3. CPV code: 72413000-8, 79415200-8 and 79822500-7

B. Variants: the presentation of variants is not allowed.

C. Economic data:

C.1. Price determination system: Combination of unitary prices and both amounts.

C.2. Bidding basis presupposition: In accordance with article 100.3 of the LCSP, in advance of the processing of a Marc agreement, a bidding basis presupposition is not approved, but as an estimate, the following estimate is reported in the initial period of the Marc Agreement:

Annual	Estimated Entitat Import (VAT exclòs)	VAT rates	VAT rate	Maximum annual amount (VAT included)
UAB	€150,000.00 21%		€31,500.00	€181,500.00
FUAB	50,000.00€ 21%		10,500.00€	60,500.00€

There is a non-binding estimate breakdown in Annex A of this plec.

C.3. Estimated value of the contract: €800,000.00

Method applied for this calculation This value included in a cumulative manner, calculated according to the one established by clause 3.4 of this plec: press the base post and possible extensions of the agreement with the following maximum unitary prices of the functions carried out by the professionals who will intervene in the provision of the services future goal encàrrec:

Functions	Price per hour Num	hours/1st any UAB	Number of hours/ 1st year FUAB	Budget 1st year
Senior team cap	45 €	344	100	€19,980
Senior Designer	40 €	634	350	€39,360
Senior Layout Designer	30 €	705	300	€30,150

Within the pressupost there is an item for the amount of **€110,510.00** for production.

This value includes the maximum estimated value of the set of contracts foreseen during the total duration of the agreement marked, including all the lots, calculated from the agreement with the one established by clause 3.3 of this plec: base price, possible extensions and possible planned modifications.

When contracting a framework agreement for unitary prices, it is worth remembering that the minimum import cap is not guaranteed by the bidders and that there is no obligation to exhaust the VEC on the part of the UAB.

C.4. Price review: no.

C.5. After contract publicity: no.

D. Duration of the chord marc:

D.1. Duration term:

UAB: 1 year from the formalization of the contract

FUAB: the duration will be 1 year to be shared from July 2, 2025 or from the date of formalization of the agreement marked in the case that follows later.

The term of the contract will begin to count from the start of the performance of the provision, and in accordance with the instructions of the contracting body, this will start in a maximum of one month that will not count for the purposes of the term of contractual execution.

At the end of the term of the contract, the Contractor will have to continue the provision of the service until the beginning of the service by a new contractor in almost all circumstances provided the essence of the public service he provides, both in terms of the conditions of the original contract and without the need for a review of additional fees or compensation.

D.2. Extension: the possibility of 3 extensions of 1 year is foreseen, up to a maximum of 4 years of the total duration of the contract.

E. Modification:

E.1. Possibility of modifying the brand agreement: no.

E.2. Modification limit: n/a

E.3. Conditions that may justify the modification: n/a

F. Lloc of service provision: Bellaterra Campus of the Autonomous University of Barcelona.

G. Guarantees:

G.1. Provisional warranty: no.

G.2. Definitive guarantee: €10,000, estimated amount that corresponds to 5% of the base bidding budget (VAT excl.). As two different contracts will be formalized, the awardee will have to constitute a guarantee of €7,500.00 in favor of the UAB and €2,500.00 in favor of the FUAB.

G.3. Ways to constitute it:

- Dipòsit to the General Fund of Dipòsits of the Generalitat of Catalonia (cash, guarantee or insurance).
- Withholding on the amount of the first invoice, or successives if escau.

G.4. Contract execution guarantee term: 1 month from receipt of contract.

H. Financing:

H.1. Project cost center: GG240802

H.2. Economic exercise/s: 2025-2026

H.2.1. Multi-year supply file: yes.

H.2.2. Estimated value of the contract greater than €200,000: yes.

H.3. Payment method: corresponding billing with the base contracts.

H.4. Subsidy contract: no.

I. Form of award of the agreement and the basic contracts:

I.1. Agreement: _____

I.1.1. Processing: ordinary.

I.1.2. Type of procedure: open, subject to harmonized regulation, with various subjective and objective assessment criteria

I.1.3. Electronic bidding: yes, it includes the Digital Envelope.

I.1.4. Maximum name of awarded companies: a single company.

I.2. Basat contracts: _____

I.2.1. Periodicity: at what time there is a need to serve by the UAB and the FUAB

I.2.2. Awarding department:

UAB: Vicegerent d'economia, Administrator de Centre, Cap d'Area i de Servei, Cap d'Oficina i Cap d'Unitat.

FUAB: Promotion and Communication FUAB.

I.2.3. Award system: since the contract agreement is signed by a single company, the award of the contracts based on it is done directly, without prejudice to the consultation of the requesting company, if necessary, which completes the second offer.

J. Economic and technical solvency:

J.1. Bidders' registration obligation to RELI / ROLECE: no.

J.2. Solvency: initially, for the accreditation of capacity and solvency, you only have to present the European Single Contract Document (DEUC). Only the tenderer who next proposed with the awardee of the agreement Marc Haurà / Only the bidders who followed proposed with the awardee of the agreement Marc Hauran to present the supporting documentation as follows:

a) Economic and financial

Total annual volume of business or in the area to which the contract refers, for an amount equal to or greater than the last 3 years of all the estimated annual value of the contract of €200,000 (excluding VAT).

The annual volume of business for the import indicates will be credited with the six annual comptes approved and deposited in the Commercial Registry, if the company is registered in that register, and otherwise the deposits in the official register in which it has been registered.

b) Professional or technical

With the objective of guaranteeing the highest technical quality in the tasks that last a term, the bidder will have to share in his team both profiles of graphic designers and previous experience in the last 5 years in serving the material type that is the object of the contract.

To prove technical and professional solvency, a list of the main services or jobs in the providers five similar to the object of the contract, the dates and the recipient, public or private, must be presented.

Previous experience must be accredited with an expedited certificate, as a minimum, by one of the companies or institutions with which work has been carried out, which constitutes conformity or satisfaction with the encàrrecs carried out.

Accreditation of the possession of the appropriate qualifications at your disposal requires a responsible declaration accompanied by a resume and the corresponding accreditation documents that are still considered sufficient by the contracting office (work life, contracts, company certificates...)

J.3. Business classification: it is not possible to prove the economic and technical solvency of the classification because there is no classification group corresponding to the object of the contract.

J.4. Commitment to submit materials and/or personnel to the execution of the contract: If agreed with the PPT.

J.5. Accredited certificates of compliance with quality assurance standards and/or environmental management: no.

K. Award criteria:

1. Criteris sotmesos a judici de valor (subjectius)	Punts
1.General technical quality of the service. It will be necessary to present, within the technical report, an executive summary, signed by the tenderer, of the development of the service and of the tasks object of this contract, in accordance with the specifications and the services collected in point X of this Plec of Technical Prescriptions: 1.1. Activities that are carried out to cover the supply of services to the different areas, units, services and entities of the UAB and the UAB Corporation. It will be evaluated according to the following subcriteria: 1.1.1. The generic description of the activities required to cover the object of the contract, at the lower level of presentation, contains details of the most relevant aspects of the presentation of the services, which is limited to copying the description of the technical plec, or presentation that does not assoleix the minimum level of quality required of the technical plec. This apartment will not be the subject of scoring, but rather will be complemented. 1.1.2. Detailed description of the creation of style guides for different formats: editorial, web pages, corporate advertising (vinyls, interior, exterior, etc.....).....Finals to 5 points. 1.1.3. Detailed description of the analysis, design of campaign and advertisement formats, to different supports and platforms.....ends to 5 points. 1.1.4. Description of the process of elaboration (design, layout and production) of Institutional materials in all types of support: catalogs, fulletons, pages in electronic format, design of applications.....ends to 5 points. 1.1.5. Detailed description of the design and elaboration of graphic applications for the fire stands and other events.....ends to 5 points. 1.1.6. Analysis and description of possible Marxandatge designs based on different public The application of the brand in different areas elements.....ends to 5 points.	25
1.2. Pla d'Execució and Work Methodology. This section describes in detail the execution plan and the work methodology that will take time to apply for the correct execution of the services, and which is far in coordination with the teams of the Communication and Promotion areas of the UAB and the FUAB. The following aspects will be assessed: 2.1. Description of the general execution methodology: schedule, project phases, presentation ends.....ends to 8 points. 2.2. Description of the joint monitoring of the phases of the projects, of the scheduling of work meetings with the coordinators responsible for the UAB or the FUAB for the analysis and validation of the services.....ends to 5 points. 23. Detailed description of the customer support activities in the framework of the projects, through different channels, for monitoring and quality control, as well as forecasting response times.....ends to 4 points. 2.4. Details of the procedure to be followed and the types of incidents that can be resolved during support consultations.....ends to 3 points	20
Total subject criteria	45

2. Automatically evaluable criteria (objectius)		Punts																							
2.1. Economic offer. Economic offer of price per hour of service. The lowest price/hour economic offer will be awarded the maximum score in the corresponding functions, and the rest of the offers will be awarded the corresponding score according to the following formula. <table><tr><th>Functions</th><th>Maximum price/hour</th></tr><tr><td>Senior team cap €45</td><td></td></tr><tr><td>Senior Designer €40</td><td></td></tr><tr><td>Senior layout artist €30</td><td></td></tr></table> $P_v = \left[1 - \left(\frac{O_v - O_m}{IL} \right) \times \left(\frac{1}{VP} \right) \right] \times P$ P_v = Puntuació de l'oferta a Valorar P = Punts criteri econòmic O_m = Oferta Millor O_v = Oferta a Valorar IL = Import de Licitació VP = Valor de ponderació		Functions	Maximum price/hour	Senior team cap €45		Senior Designer €40		Senior layout artist €30		30															
Functions	Maximum price/hour																								
Senior team cap €45																									
Senior Designer €40																									
Senior layout artist €30																									
VP = 1 Each offer price is equivalent to 33% of the total price when calculating the score (10 points)																									
2.2 Other valuable elements in formula applications 2.2.1. Equip professional: technician/executor of the service The experience of the members of the professional team assigned to the service exceeding the minimum of 5 years and required by the plec of technical prescriptions of the tender is subject to evaluation, in the following terms: <table><tr><th>Functions developed</th><th>Experience</th><th>Punts</th></tr><tr><td rowspan="2">Senior team cap</td><td>7 years</td><td>9</td></tr><tr><td>years</td><td>2</td></tr><tr><td rowspan="2">Senior Designer</td><td>or more 7</td><td>4</td></tr><tr><td>years</td><td>1.5</td></tr><tr><td rowspan="2">Senior Layout Designer</td><td>9 years or</td><td>3</td></tr><tr><td>more</td><td>1.5</td></tr><tr><td rowspan="2">Senior Layout Designer</td><td>7 years</td><td>9</td></tr><tr><td>9 years or more</td><td>3</td></tr></table> To accredit the experience of each person in the provision of the service object of the present Agreement Mark to any entity or company is farà mitjançant contract, invoice or any other document admissible in dret for amount equal to or greater than €10,000/any, excl. assigned to the service. In the case of incorporating the work team more than one person who performs the functions of senior designer and senior layout designer, it will take into account the accumulated experience of each of the members of the team. This experience takes time to inform with a responsible declaration in the terms of Annex No. 1 Only the tenderer who subsequently proposes that the awardee will have to present the supporting information for the claim, in addition, the documentation will explain the main details of the professional relationship justifying the responsible declaration.		Functions developed	Experience	Punts	Senior team cap	7 years	9	years	2	Senior Designer	or more 7	4	years	1.5	Senior Layout Designer	9 years or	3	more	1.5	Senior Layout Designer	7 years	9	9 years or more	3	25 10
Functions developed	Experience	Punts																							
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	more	1.5																							
Senior Layout Designer	7 years	9																							
	9 years or more	3																							

2.2.2. Demonstrated experience in projects creatius dins de l'ambit de l'Educació Superior . 2.50 points will be awarded for each Higher Education company whose projects are being carried out within 5 years. This experience will take time to inform with the responsible declaration in the terms of Annex No. 1. Only the tenderer who followed the proposal with the awardee will have to present the information justifying the claim, in addition, the documentation will explain the main details of the professional relationship justifying the responsible declaration.	10
2.2.3. Incorporation of a 24/7 customer service in all phases of the project. You must attach documentation proving the proposed amount regarding the minimum requirements of the Technical Plec in the Customer Service	5
Total criteria objective 55	
Total award criteria 100	

L. Documentation of the envelopes:

L.1. About A (administrative documentation): DEUC the model approved by the Generalitat of Catalonia (available at <https://contractacio.gencat.cat/web/.content/contractar/licitacio/deuc.pdf>), and, if not, the documentation is established in clause 10.1 of this plec.

L.2. On B (offer with valuation criteria subject to value judgment): technical report for the provision of the services and contract, which must comply with both the requirements established in the plec of technical prescriptions and must allow the subjective award criteria to be assessed.

L.3. Envelope C (offer with automatic valuation criteria): offer drawn up in accordance with the annex model no. 1 of this plec and documentation accrediting the compliance of the technical plecs and the new offer.

IMPORTANT: Failure to present any of the required envelopes and/or structural documents of the bid will imply automatic exclusion of the bidder.

M. Criteria for the determination of abnormally low offers: an economic offer can be considered abnormally low when its amount remains lower than 10% of the arithmetic mean of the set of offers presented.

It is considered an objective parameter to appreciate that the proposals cannot be complete as a result of the inclusion of abnormal or disproportionate values, the indication of a price lower than the minimum salary costs per professional category, according to the current labor agreement.

N. Responsible for the contract:

- **UAB:** Àngels Guimerà Guinot, head of the Rector's Office.
- **FUAB:** Responsible for Promotion and Communication of the FUAB.

O. Special conditions of execution:

- The compliment of the ethical principles establishes clause 23.12 of this plec.
- The application and compliance of the applicable collective agreement.
- Obligations regarding data protection are established in clause 23.7 and 23 bis of this document.
please.
- The management of waste in accordance with the waste regulations of Catalonia.

P. Essential contractual obligations:

- The compliment of the special condition / the special conditions of execution establishes / establishes the apartat O d'aquest quadre.
- The compliment of the million that forms part of the offer of the awardee, if a copy formalizes the contract is considered adient by the contracting body.
- The registration of the human rights and/or materials sufficient for the correct execution of the contract of agreement with the apartment I.3 of this quadre.

Q. Penalties: these are established in clause 26.2 of this plec.

R. Subcontracting: it is permet.

S. Obligation of subrogation of workers: no.

T. Information about the procedure: it is possible to request additional information about the plecs and other complementary documentation with the conditions established in clause 9.6 of this plec.

There are different days to provide information or clarify doubts about the tender:

- Directly through email:
 - o Technical inquiries: a.comunicacio.promocio@uab.cat
 - o Legal or administrative inquiries: uca@uab.cat

The queries carried out for interested parties and answered by the UAB will be published through the questions and answers section of the contractor profile notice board, as long as the UAB considers that they are of general interest.

- Contractor profile notification system in accordance with clause 6.3 of this plec.

The doubts, consultations and/or requests for information take time to formulate the correct instructions in writing, as it took up to **6 days after the end of the term for submitting the offers**. Any doubts presented later will attempt to donate responses **but this cannot be guaranteed**. Upon receipt of the missatge, it is mandatory to include the code/number of the file.

Please note that it is the obligation of interested parties to periodically consult the contractant's profile to be informed of the status of the contracting procedure.

T. Electronic communication mitjans: in agreement with clause 6 of this plec, communications and notifications that are required during the contracting procedure and during the validity of the mark agreement will be carried out by electronic mitjans through the e-NOTUM notification system.

For these purposes, the notices of the inn will be sent at the disposal of the notifications and communications to the email addresses and to the mobile phones that the companies have provided for this purpose in the DEUC. These details, together with the name, code and NIF of the person or persons authorized to access electronic notifications, are included in the section relating to "contact person or persons" of Part II.A of the ESPD), in accordance with what is indicated in clauses 6.2 and 10.1 d'aquest plec.

PLEC OF ADMINISTRATIVE CLAUSES

Accord mark no. CONTR-108/2024

Agreement with a brand of approval of a single supplier for the execution of the service consisting of the tavern creative, design, the elaboration of style guides and the development and production of all elements elements and necessities, in any format, to donate support to the communication and promotion strategies of the Autonomous University of Barcelona (UAB), as well as entities of the UAB Corporation

1. Object and finalities of the agreement mark

- 1.1. The purpose of the chord is the one described in section A.1 of the QR.
- 1.2. The object of the lots into which the contract is divided and the conditions of participation are specified in section A.2 of the QR.
- 1.3. In section A.3 of the QR the coding corresponding to the nomenclature of the Common Contract Vocabulary (CPV) is established.
- 1.4. Variant proposals are admitted as they are contained in section B of the QR and with respect to the elements and in the conditions that are expressly established.
- 1.5. The administrative requirements that must be satisfied by the contract are those that appear in the technical prescriptions sheet.
- 1.6. The agreement marks the following finalities:
 - Select the companies that will provide services to the UAB and the FUAB during the validity of the agreement, both exclusively.
 - Fix the general conditions of award and execution of subsequent contracts of service bases in the accord marc.

2. Legal regime of the marc agreement

1.1. The agreed agreement is a contract of an administrative nature and is governed by this set of administrative clauses and the set of technical prescriptions, the clauses of which are considered an integral part of the contract. Furthermore, it is governed by current regulations on contingent public contracting, mainly in the following provisions:

- a) Law 9/2017, of November 8, on public sector contracts, by which the Directives of the European Parliament and of the Consell 2014/23/EU and 2014/24/EU, of February 26, 2014 (for endavant, LCSP) are transposed into the Spanish legal order.
- b) Decree llei 3/2016, of May 31, on urgent measures in matters of public contracting (d'ara endavant, DL 3/2016).
- c) Royal Decree 817/2009, of May 8, which partially develops Law 30/2007, of October 30, on public sector contracts (endavant, RD 817/09).
- d) General regulations of the Law on Contracts of Public Administrations, approved by Royal Decree 1098/2001, of October 12, in all, do not modify or derogate from the provisions established above (for endavant, RGLCAP).

- e) Law 39/2015, dated October 1, of the common administrative procedure of the administrations public (d'ara endavant, LPAC).
- f) Law 26/2010, of August 3, on the legal and procedural regime of public administrations of Catalonia (d'ara endavant, LRJP).
- g) Statutes of the UAB.
- h) In addition, the remaining administrative law rules and, failing that, the private law rules apply.

1.2. In accordance with the Statutes of the UAB, the contracting body is the rector.

1.3. The information regarding this contracting procedure can be consulted in the UAB contractant profile (contractaciopublica.gencat.cat/perfil/uab).

3. Economic details of the marc agreement

3.1. The system for determining the contract price is the one indicated in section C.1 of the QR. _____

3.2. In accordance with article 100.3 of the LCSP, it is not necessary to approve a bidding basis presupposition prior to the processing of a marked agreement. Tanmateix, in section C.2 of the QR, the maximum unitary prices that bidders must take into account in order to present the offer are established. The fee of submitting a financial offer for these unitary prices is the reason for the exclusion of the bidder.

3.3. In the proposals presented by the bidders, they include all the clearances that the contractor must carry out to complete the contract, such as transport, taxes, accessory and auxiliary labor and all the taxes levied on the service to be performed.

3.4. The estimated value of the contract and the method applied for its calculation are assigned to section C.3 of the QR. This value includes the total deduction at the expense of the UAB (VAT excl.) which may involve the execution of the contract, including the total planned amount of the contract, the extensions, the planned modifications and the eventual options (primes, bonuses, etc.).

The estimated value of this agreement has been calculated based on the amounts of services carried out in both countries at the UAB and the FUAB. In all cases, this estimated value is indicative and non-binding.

3.5. The price review applicable to this contract is detailed in section C.4 of the QR. The periodic and predetermined review of prices is only appropriate when the contract has been executed, however, at 20% of the amount and has passed a minimum of two years from the moment it is formalized.

3.6. If not, the results of the announcements that are published will lead to the award of the award and the maximum amount will be the one that appears in section C.5 of the QR.

In cases where the agreement is divided into lots and, consequently, for more than one awardee, the amount of the costs of the advertisements is distributed proportionally among the present awardees on the basis of the base budget of each lot.

3.7. The UAB has completed all the procedures to ensure the existence of credit for the payment of the contract. The budget item to which this credit is attributed is the one that is reported to department H.1 _____
from the QR.

In case the mark agreement is formalized in the pressupostari exercise prior to the start of the next execution, the award will be subject to the suspensive condition of existence of adequate credit and sufficient to finance the obligations derived from the mark agreement in the corresponding pressupostari exercise.

When the term of execution of the agreement marks more than a press-subject exercise and is authorized to despesa both multi-year supply, it is far to be stated in the H.2 section of the QR.

3.8. The form of payment of the price of the contracts based on the mark agreement is established in section H.3 _____
from the QR.

3.9. If you look at it, for information purposes, section H.4 of the QR indicates the entity that subsidizes the import of the base contracts in whole or in part.

4. Duration of the marc chord

4.1. The duration of the marked agreement is the one indicated in section D.1 of the QR.

4.2. The agreement may be extended if it has already been provided for in section D.2 of the QR. The extension will be agreed upon by the UAB and will be obligatory for the contracting company, provided that advance notice is provided, at least, 2 months before the end of the term of the agreement. If the duration of the marked agreement is less than 2 months, the UAB is not obliged to notify the company in advance.

The extension is not possible by tacit agreement of the parties.

4.3. Notwithstanding what is established in the previous sections, when upon expiration of the agreement, the new contract has not been formalized to guarantee the continuity of the service to be provided by the contractor as a consequence of incidents resulting from unforeseeable events by the UAB products in the procedure. If the award is made for reasons of public interest so as not to interrupt the provision, it is possible to extend the original contract until the execution of the new contract begins and in all cases for a maximum period of 9 months, without modifying the rest of the conditions of the contract, as long as the tender announcement of the new contract is made public at once. a minimum advance notice of 3 months with respect to the date of completion of the original contract.

5. Form of award of the marc agreement

The award of the agreement is carried out through the procedure established in section I.1.1 of the QR and the procedure indicated in section I.1.2 of the QR.

The maximum name of the awarding companies that may be selected is the one listed in section I.1.4 of the QR.

6. Electronic communication tools

6.1. In accordance with additional provision 15a of the LCSP, the processing of this tender involves the practice of notifications and communications that derive exclusively from electronic sources.

6.2. The communications and notifications that are required during the contracting procedure and during the validity of the marc agreement will be carried out by electronic means through the e-NOTUM notification system, in accordance with the LCSP and the LPAC.

For these purposes, **the notices of the inn will be sent at the disposal of the notifications and communications to the email addresses and to the mobile phones that the companies have provided for this purpose in the DEUC. These details, together with the name, code and NIF of the person or persons authorized to access electronic notifications, are included in the section relating to "contact person or persons" of Part II.A of the ESPD), in accordance with what is indicated in clause 10.1 of this plec.**

A copy of the email, and the SMS in the case that is also provided by a mobile phone, indicates that the corresponding notification has been made available in the e-NOTUM, which must be accessed by the designated person, while the message is sent to this effect. In the virtual space, the notification is available and allows you to access it with your digital certificate or with your password.

The terms to be counted from the notification will be computed from the date of sending of the notification notice, if the act object of notification has been published on the same day in the UAB contractor profile.

Otherwise, the terms are computed from the receipt of the notification by the company to whom it is addressed.

6.3. Furthermore, in order to provide all the information relating to this tender, the companies that are currently open can subscribe with their interests in this tender, through **the** service of subscribing to the novelties of the virtual tender space which for this purpose is available in the UAB contractor profile. (contractaciopublica.gencat.cat/perfil/uab).

Bidding companies do not need to register for the subscription service until they are automatically subscribed when an offer is activated.

This subscription will allow you to immediately notify the electronic rights of the subscribed persons of any news, publication or notification related to this tender.

Així mateix, certain communications that are made on occasion or as a consequence of the bidding and awarding procedure of this contract are carried out by means of the announcement tauler associated with the virtual bidding space of this tender (contractaciopublica.gencat.cat/perfil/uab). In this electronic announcement table, which provides reliable evidence of the authenticity, integrity and date and time of publication of the published information, information relating to both the tender and the contract is also published.

In addition, bidding companies can also register in the bidder's profile, after the required authentication. The profile of the bidder is constituted by a set of services aimed at the bidding companies with the objective of providing its own space to each bidding company, with a follow-up of information that facilitates the access and management of contract files of its interest. To donate, access the "Tenderer Profile" section of the Public Contracting Services Platform and obtain the required digital certificate.

6.4. In relation to digital certificates, in accordance with additional provision 1a of DL 3/2016, the use of the advanced electronic signature based on a qualified or reconegut electronic signature certificate in the terms provided for in Regulation (EU) 910/2014/ EU, of the European Parliament and the Council, will be sufficient. of July 23, 2014, relating to electronic identification and trust services for electronic transactions in the internal market and which repeals Directive 1999/93/EC. Therefore, this is the minimum security level necessary for the electronic signature certificate approved for the DEUC signature and the offer.

As for foreign community certificates, qualified certificates will be accepted in any country of the European Union in accordance with Article 25.3 of Regulation (EU) 910/2014/EU on electronic identification and trust, that is, which provides that "a qualified electronic signature based on a Qualified certification for a Member State will be recognized as a qualified electronic signature for the rest of the Member States.

7. Capacity to hire

7.1 You are entitled to participate in this tender and subscribe, if necessary, the corresponding contract to the natural or legal persons, Spanish or foreign, who meet the following conditions:

- Have legal personality and full capacity to act, in accordance with article 65 of the LCSP.
- Not be involved in any of the circumstances of prohibition of contracting listed in article 71 of the LCSP, which they can prove by qualifying the mitjans established in article 85 of the LCSP.
- Accredited the solvency required to clause 9 of this plec.
- Have a business or professional qualification that, if escaped, remains required for the duration of the service that constitutes the object of the contract.
- Furthermore, when, in order to determine the applicable regulations, the company is required to determine certain requirements relating to the organization, destination of its benefits, financial system or others to be able to participate in the award procedure, which must be accredited by the bidding companies.

Així mateix, the benefits objective of this contract must be understood within the finalities, objective or scope of action of the bidding companies, according to the results of the seus statutes or foundational rules.

The circumstances relating to the capacity, solvency and absence of prohibitions to contract must be included in the final date of presentation of offers and subsist at the time of formalization of the contract.

7.2. The capacity to act of Spanish companies as legal persons is accredited through the deed of incorporation or modification registered in the Commercial Registry, which remains enforceable in accordance with commercial legislation. If not, the document or document of incorporation, statutes or founding act, in which the norms that regulate the activity are included, are accredited, if not, in the corresponding official record. You also need to provide the company's NIF.

The capacity to work of Spanish companies with natural persons is accredited with the presentation of the NIF.

The ability to operate of non-Spanish companies from Member States of the European Union or signatories of the Agreement on European Economic Space must be accredited by registration in the professional or commercial registries of their Member State or by the presentation of an affidavit or one of the certifications that Please refer to Annex XI of Directive 2014/24/EU.

The ability to operate of foreign companies from states that are not members of the European Union or signatories to the Agreement on European Economic Space must be accredited by the agreement with the one that established the art. 68 of the LCSP.

7.3. The UAB can contract both temporary joint ventures (UTE) that are temporarily constituted for this purpose, meaning that it would still be necessary to formalize them in public deed for purposes that the contract has not been awarded.

The companies that form the UTE are jointly and severally obligated by the UAB and must nominate a representative or sole representative with sufficient powers to exercise the rights and fulfill the obligations that are derived from the contract until it is terminated, but it is detrimental for the companies to grant joint powers to collect and pay a significant amount.

The duration of the UTE must coincide, however, with that of the contract until it is terminated.

For the rest of the circumstances related to the participation of the UTEs, the art must be taken into account. 69 of the LCSP.

7.4. Companies that have participated in the preparation of the technical specifications or the preparatory documents of the contract or have assessed the contracting body during the preparation of the contracting procedure, may participate in the tender as long as it is guaranteed that their participation does not distort competition.

8. Solvency

8.1. Companies must prove that they meet the minimum solvency requirements detailed in section J.2 of the QR.

Companies that, for a valid reason, are not able to present the references requested in section J.2 of the QR to accredit their economic and financial solvency, will be authorized to accredit it by means of any other document that the contracting body considers appropriate.

In contracts not subject to harmonized regulation, when the contractor followed a newly created company, meaning one that has a history of less than 5 years, the technical solvency must be accredited by one or several of the mitjans to which it refers in the letters b) to i) of the art. 90.1 of the previous LCSP, meaning that in almost every case the one established by letter a) of the article mateix, related to the execution of a specific service name, remained applicable.

8.2. If not, the bidding companies must commit to dedicating or assigning to the execution of the contract the personal resources and/or sufficient materials that are indicated in section J.3 of the QR.

8.3. The bidding companies may refer for the execution of the contract to the capacities of other entities, both independently of the legal nature of the links that exist between them, in order to accredit their economic, financial, technical and professional solvency, as long as these entities are not subject to prohibition of contract and that the bidding companies demonstrate that during the entire duration of the execution of the contract they will effectively have the necessary resources available through the presentation for this purpose of the written commitment of the entities involved.

However, with respect to the criteria relating to the titles of studies and professionals and professional experience, companies can only refer to the qualifications of other entities if they provide the services necessary for the necessary qualifications.

Under these conditions, the UTEs can visit the capacities of the participants in the union or other entities.

8.4. The community certificates of companies authorized to contract those referred to in article 97 of the LCSP constitute a presumption of aptitude in relation to the qualitative selection requirements that appear in these.

8.5. In the UTE, all the companies that are part of it must prove their solvency, in the terms indicated in section J.2 of the QR. In order to determine the solvency of the UTE, the amount credited by the death of the six members is accumulated.

9. Presentation of proposals

9.1. In cases where the object of the contract is divided into lots, companies can present an offer in all lots.

9.2. The bidding companies, as is evident in section I.3 of the QR, must present the documentation that conforms to the six offers in **3 envelopes (A, B and C)**, in the maximum term that is submitted in the plec and in the tender announcement, with the Digital Envelope accessible on the web address contractaciopublica.gencat.cat/perfil/uab.

The admissible electronic document format is mainly PDF, although for some specific tenders it is only possible to tender documents in full calculation (Excel) or other formats.

You can find support material on how to prepare an offer and on the technical specifications necessary for the presentation of offers using the Digital Envelope in the "Electronic Tendering" section of the Public Contracting Services Platform, on the following website:

contractaciopublica.gencat.cat/ecofin_sobre/AppJava/views/ajuda/empreses/index.xhtml

A copy accessing through this link to the Sobre Digital website, the bidding companies have to fill out a form to donate registration to the website and then send a message, to the email(s) indicated in this registration form, to activate the offer.

The electronic devices that the bidding companies indicate in the registration form for the Digital Envelope line, which will be the methods for sending electronic mail related to the use of the Digital Envelope line, must be the matters that are designated in the DEUC to open the notifications and communication notices. l'e-NOTUM.

Bidding companies must keep the electronic email for activating the offer, since the link that is included in the activation message is the exclusive access they will have to present the six offers through the Digital Envelope line.

By accessing the bid submission website through these links, the bidding companies must prepare all the required documentation and attach it in electronic format to the envelopes.

correspondents. Bidding companies may prepare and send this documentation in a staggered manner, prior to the presentation of the bid.

In order to begin the documentation process, the company will require the bidding companies to enter a clause clause for each envelope of the signed documentation that formed part of the tender (envelope A is not required to include a clause, as the documentation is not signed). Both of these clauses are required, at the time of sending the offers, the documentation. In this case, the desxifrat of the documents of the bids is carried out by the material paraula clau, which must be kept by the bidding companies. To keep in mind the importance of properly guarding this or these clauses (they can be the material for all the envelopes or different ones for each of them), since only the bidding companies have them (the Digital Envelope folder does not save or remember the entered passwords) and they are essential for the decryption of the offers i, per tant, per l'access to its contingut.

A copy is completed 24 hours after the end of the deadline for submitting bids, the Digital Envelope material will automatically be sent to the bidding companies, while the electronic mail is entered in the bid registration form, which accesses the Digital Envelope website to enter the entries. paraules clau at the corresponding moment.

The bidding companies are trying to introduce the clause clause before the opening of the first xifrat envelope. Therefore, it is recommended to introduce it immediately upon receipt of the request for the introduction of the paraula clau.

When the bidding companies enter the passwords, the process of decryption of the documentation will begin, which is stored in a secure virtual space that guarantees the inaccessibility of the documentation, in the second case, from the constitution of the table and from the act of opening the envelopes, in the data i It's time to settle down.

In case a bidding company does not introduce the paraula clau, it will not be able to access the contingut of the Xifrat envelope. However, since the presentation of bids through the Digital Envelope line is based on the verification of the documentation and requires the introduction by the bidding companies of the paraula clau, which they only keep during the entire process, in order to access the quotation of the envelopes, it will not be possible to carry out the evaluation of the documentation of the new offer that cannot be deciphered because the company has not introduced the clause.

Once all the documentation of the offer and the attached documents that constitute it have been completed, the actual presentation of the offer is complete. From the moment the offer is presented, you will no longer be able to modify the submitted documentation.

In case of a technical incident that makes it impossible to use the Digital Envelope line on the day of presentation of the proposals, the UAB will extend the term of presentation of the materials to the time that is considered essential, modifying the term of presentation of offers; publicant in the contractant profile of the UAB l'esmena corresponent; I, additionally, communicate the change of data to all the companies that make the offer active.

9.3. In accordance with the provisions of section 1.h of additional provision 16a of the LCSP, the sending of offers using the Digital Envelope may be carried out in two phases, first transmitting the electronic form of the offer documentation, including the term of presentation of offers, as well as the reception. of which the seva presentation will be considered made for all purposes, and after the sending of the documentation of the offer itself, within a maximum term of 24 hours. If this second remiss is not made within 24 hours, the offer will be considered to have been withdrawn.

If this is possible, please bear in mind that the documentation submitted in this second phase must completely coincide with the one that has been sent in the digital contract previously, so that it is not possible to produce any modification of the electronic fitxers that configure the documentation of the offer. In this sense, it is important to emphasize the importance of not manipulating these files (nor, for example, fer-ne copies, as follows from identical contingency) in order not to vary-in the electronic enterprise, which is the one that will be checked to ensure the coincidence of documents in the tram offers in two phases.

9.4. The offers presented must be free of computer viruses and any type of program or harmful code, otherwise the documents will not be able to be opened. Therefore, it is the obligation of the contracting companies to pass the documents through an antivirus and, in the event of arriving documents of the six offers with viruses, it will be the responsibility of those that the UAB cannot access the contingent of these.

In the event that any document presented by the bidding companies is incorrect, blank, illegible or affected by a computer virus, the contracting committee will assess, depending on who followed the affected documentation, the legal consequences regarding the participation of this company in the procedure, which must derive from the impossibility of accessing the contingent of any of the documents of the offer. In case of obtaining essential documents to consult or evaluate the offer, the table will agree on the exclusion of the company.

The bidding companies may present a copy of security of the electronic documents presented in physical electronic support, which will be requested from the bidding companies if necessary, in order to be able to access the contingent of the documents in cases that are considered Malmese. In this sense, it is important to remember the importance of not manipulating these files in order not to vary the electronic system, which is what is checked to ensure the coincidence of the documents in the security copy, the transactions in the electronic physical support, and the transactions in the offer, through the Digital Envelope line. However, please bear in mind that this copy cannot be purchased in the case of having sent documents with viruses through the Digital Envelope Line, there is a technical impossibility in these cases of being able to compare the electronic contracts and, therefore, of being able to guarantee the non-modification of the offers in a final copy. finished presentation.

9.5 The Digital Envelope Line does not allow the presentation of archives larger than 25 Mb. For this reason, the archives of the offers of this size must be compressed or fragmented into various parts. The partition must be done manually (sense to use the automatic partition type winzip or winrar) and incorporate the password type cap. The archives resulting from the partition are incorporated into the section of other document numbers (part 1 of 2, part 2 of 2).

9.6. The UAB is not the owner nor is it competent to manage the Public Sector Contracting Platform, an IT managed by the Open Administration Consortium of Catalonia. Therefore, the UAB is not competent to resolve technical incidents that may arise from bidders when submitting offers.

9.7. Persons interested in the bidding procedure may request from the UAB additional information on the plecs and other complementary documentation. Cal tenir en compte que d'acord amb l'art. 138.3 of the LCSP, the UAB must provide this information at least 6 calendar days before the final deadline for the presentation of offers, provided that it requires at least 12 calendar days after the expiration of the deadline for presentation of the proposals.

Persons interested in the bidding procedure may also contact the contracting body to request clarifications from which they establish the plecs or the rest of the documentation, through the questions and answers section of the notice board in the virtual space of the tender. These questions and answers will be public and accessible through the UAB contractor profile tauler.

9.8. The proposals are secret and their presentation supposes the unconditional acceptance by the bidding company of the contingent of the present plec, together with the plec of technical prescriptions, also with the authorization to the UAB to consult the data recorded in the Electronic Registry of Bidding Companies of the Generalitat of Catalonia or the Official register of bidders and classified companies in the public sector, or the official lists of economic operators of a Member State of the European Union.

9.9. Each bidding company may not present more than one proposal. Nor can you subscribe the proposal in a UTE with others if it has not been individually or appear in more than one UTE. The infringement of these norms leads to the non-admissibility of the proposals that have been subscribed.

9.10. In accordance with the doctrine of the Contracting Courts (Resolution 312/2022 TCCSP and resolution 902/2019 TACRC) and in application of article 30 of Law 39/2015 LPACAP "the offers presented in

Any unit with a time shorter than one minute will be deemed to be presented within the term (...) so that the term will end at the moment immediately prior to XX hours 01 minutes.

10. Contents of the envelopes

10.1. Contingut of envelope "A" (GENERAL DOCUMENTATION):

a) Single European Contract Document (DEUC): this declaration must be completed according to the model that is attached with the template on the line of the Digital Envelope, which declares the following:

- That the company is validly constituted and that in accordance with its corporate purpose it can be submitted to the tender, therefore the signatory of the DEUC has the necessary representation to present the proposal and the DEUC material.
- That complies with the requirements of economic and financial, technical and professional solvency, in accordance with the minimum requirements demanded in this plec. ***In this sense, Part IV of the DEUC (selection criteria) is able to complement a global indication relating to all selection criteria, marking the affirmative option to the section "Compliment of all selection criteria".***
- That it is not subject to a prohibition of contracting.
- That it completes the rest of the requirements that are established in this plec and that it is possible to accredit using the DEUC. For example, in accordance with article 71.1, letter d) of the LCSP, the accreditation of the compliment of the quota of reserve of treball llocs and the obligation to dispose of an equal share is required by the presentation of the DEUC.

In addition, this includes the designation of the **name, code and NIF of the person or persons authorized to access the electronic notifications, as well as the electronic mail settings and, additionally, the mobile telephone numbers in relation to the notices of the notifications**, in accordance with the clause 6 of this plec. In order to ensure receipt of electronic notifications, it is recommended to designate more than one authorized person to communicate them, as well as various email and mobile phone arrangements regarding the notices from the possses available.

These details are included in the section relating to "contact person or persons" of Part II.A of the ESPD.

In addition, bidders must indicate in the ESPD, if necessary, the information relating to the person or persons authorized to represent them in this tender.

The DEUC must be signed electronically by the person or persons who have the sole representation of the company to present the proposal.

In the case of companies that participate in the tender with the commitment to join together in a UTE if they are awarded the contract, each company must prove their personality, capacity and solvency, and present a separate DEUC. In addition to the DEUC, they must provide a document containing the commitment to formally establish themselves as a UTE if they are awarded the contract.

In the event that the bidding company becomes solvent and mitjans of other companies in accordance with the provisions of article 75 of the LCSP, or has the intention of subscribing subcontracts, this circumstance must be indicated in the DEUC and another separate DEUC must be presented for each company to which solvency of the quals he traveled or that he had no intention of subcontracting.

If the object of the contract is divided into lots and different solvency requirements are required for each lot, bidders must use one DEUC for each lot.

Bidding companies that appear in a national data base of a member State of the Union European Union, with a virtual company file, an electronic document documentation system or a prequalification system, with free access, they only have to provide in each part of the ESPD the information that does not appear in these bases. Així, the companies registered in the Registry

Electronic of Tendering Companies (RELI) of the Generalitat of Catalonia or in the Official Registry of Tenderers and Classified Companies of the Public Sector (ROLECE), they are only obliged to indicate in the DEUC the information that is not registered in these records, or that is not current or updated. In all cases, these companies must indicate in the ESPD the necessary information that allows the contracting body, if necessary, to access the corresponding documents or certificates of justification.

The provision of documentation justifying the completion of the requirements demanded in this plec the completion of the quals that has been indicated in the DEUC, the time to carry out the bidding company in which the award proposal is received in order to have presented the best offer, both prior to the award.

Furthermore, the UAB may require the bidding companies to present all or part of the documentation justifying the fulfillment of the prerequisites, when it considers that there are reasonable doubts about the validity or reliability of the DEUC or what is still necessary for the proper development of the procedure. However, the bidding company that is registered in the RELI or in the ROLECE or that appears in a national data base of a Member State of the European Union with free access, is not obliged to present the justification documents or other documentary proof of the data registered in these records.

b) Declaration of submission to the Spanish courts and tribunals: foreign companies must provide a declaration of submission to the Spanish courts and tribunals of any order for all incidents that may arise from the contract, with an express waiver of their own right.

c) Subscription commitment of materials and/or personals: only in the case that it is required in section J.3 of the QR, the bidders must present a declaration of commitment of adscription to the execution of the contract determined by materials and/or personals.

d) Provisional guarantee: only in the case where section G.1 of the QR is required, bidders must present proof of the constitution of the provisional guarantee.

10.2. Contingut of envelope “B” (offer with valuation criteria subject to value judgment):

Envelope B has included the documentation specified in section L.2 of the QR, related to the award criteria that depend on a value judgment.

It was included in envelope B of the economic offer, along with any information about the offer of a relevant nature that can be evaluated automatically and which, therefore, is included in envelope C, will lead to the exclusion of the bidding company, as it violates the secrecy of the offers or the obligation not to have coneixement of the contingut of the documentation relative to the objective valuation criteria abans of the relative to the subjective valuation criteria.

10.3. Contingut of envelope “C” (offer with automatic valuation criteria):

Envelope C has included the documentation specified in section L.3 of the QR, related to the award criteria that can be assessed automatically, in accordance with the model of Annex 1 of this document (which is attached as a template to envelope C of this tender, included in the Digital Envelope line), and the proposals corresponding to other award criteria, if necessary, agree to the contingencies included in the templates and annexes of this corresponding plec.

Economic proposals that contain omissions, errors or errors that do not allow them to be clearly identified will not be accepted.

10.4. . Through the Digital Envelope line, companies must sign the “summary” document of the six offers, with an advanced electronic signature based on a qualified or reconegut certificate, with the signature from which the totality of the offer is signed, since this document contains the electronic commitments of all the documents that the compose

IMPORTANT: The digital certificate used must be validated by the Contracting Services Platform Public of the Generalitat in accordance with the level of security and technical requirements that it establishes pursuant to Law 59/2003 of Electronic Signature, the UAB is a user of the Platform and cannot donate support in matters of technical requirements and electronic signatures.

The proposals must be signed by the legal representatives of the bidding companies and, in the case of contracting of companies that also agree to become a UTE if they are successful, they must be signed by the representatives of all the companies that comprise it.

11. Confidentiality

Bidders may ascertain, from each document they have submitted in the Digital Envelope line, they may declare that it contains confidential information, if it contains information of that type.

The documents presented to the bidders may be considered confidential if they include industrial, technical or commercial secrets and/or intellectual property rights, and when disclosed to third parties could be contrary to their legitimate commercial interests and/or harm legal competition between the companies of the sector; or because your treatment may be contrary to the provisions of the regulations regarding the protection of personal data. However, confidentiality affects any other information with a contingency that can be used to distort competition, whether in this bidding procedure or in other subsequent ones.

The documents that have the character of public access documents do not have confidential character, nor do the data included in the DEUC or the economic offer of the company, which is the object of reading in a public record.

The declaration of confidentiality of the bidders must be necessary and proportional to the purpose or interest that is to be protected and must determine in an express and justified manner the documents and/or facilities that they consider confidential. Generic declarations or non-justifications of confidential nature are not admitted.

Without prejudice to the declaration of confidentiality of the bidders, upon request for information it is up to the UAB to assess whether this qualification is correct, in accordance with the principles of publicity and transparency that govern administrative action, and to correct it if it is found, after hearing the bidders.

12. Contracting table

12.1. The contracting table is integrated with the following members:

• President: Xavier Ramos Morilla, vice-rector of Economy

• Vice President: Maria Cendrós Carreras, Vice President of Economy

• Member 1: Pedro de Alcántara-García Briones, head of the Legal Cabinet

• *Vocal Substitute 1: Sandra Vives Prieto, lawyer at the Legal Office*

• Member 2: Sònia Hernández Tejada, executive secretary of the Social Council

• *Vocal substitute 2: Concepció Ibáñez Aranda, technician of the Social Council*

• *Member 3: Àngels Guimerà Guinot, head of the Rector's Office.*

• *Member 4: Maria Espadalé Reballí, Executive Vice President of the FUAB*

• *Member 5: Isidre Tomasa Priego, head of the Promotion Unit.*

• *Member 6: Beatriz Cañete Ramírez, head of l'InfoUAB*

• Secretary: Roger Casanova de Vilalta, head of the Administrative Contracting Office i

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• *Substitute secretary: Marta Miracle Babià, head of the Administrative Contracting Unit*

The table can incorporate special assessors into the six meetings as well but without voting.

12.2. The contracting table has established functions attributed to art. 326.2 of the LCSP in art. 22 of RD 817/09.

12.3. The minutes of the board relating to the award procedure will be published in the UAB contractor profile.

13. Determination of the best offer

13.1. For the evaluation of the proposals and the determination of the best offer, attention must be paid to the award criteria established in section K of the QR. _____

13.2. Initially the contracting table will meet for the qualification of the continuous documentation in envelopes A.

In the event that no noticeable defects are observed, the envelopes B presented by the admitted companies will be opened, and the documentation contained in the statement on the body entrusted with the evaluation will be carried out.

13.3. In the event that, at the time of opening the envelopes, any abnormal defects are observed, the affected bidding companies will be notified so that they are examined within 3 business days.

Once considered, if defects in the accompanying documentation in Envelope A are found, the board will evaluate and determine the companies admitted to the tender and the exclusions, as well as, in the latter case, the causes of exclusion.

Subsequently, the envelopes B presented by the admitted companies will be opened, the accompanying documentation will be placed in the statement on the organ entrusted with the evaluation.

13.4. If communication is detrimental to the persons concerned, it is public disclosure in these circumstances regarding the UAB contractant profile.

Així mateix, in accordance with article 95 of the LCSP the table can solicit to the bidders the clarifications that they calculate on the certificates and documents presented or require them because in the present of complementaris, the quals, of conformitat with the article 22 of the RGLCAP, will have a termini of five dies naturals sense that puguin present-se after declarations admitting the offers.

Requests for clarifications or statements are made last through the functionality that is provided by the Digital Envelope e-mail, which will send an email to the address or details provided by the bidding companies in the registration form, with the application for which access the space in which you have to provide the corresponding documentation.

These requests for information or clarification will be communicated to the company through electronic communication through e-NOTUM, in accordance with clause 6 of this plec.

13.5. Once the evaluation of the bids has been finalized according to the award criteria submitted to a value court, the public act of opening of the envelopes C will be called.

The board may request the technical reports that it considers necessary before formulating the second award proposal. You may also request such reports as you consider necessary to verify that the offers complete both the technical specifications of the plecs. Proposals that do not comply with the prescriptions will not be subject to evaluation.

On the day, at the time indicated in the corresponding call, a public event will be held in which the score obtained by each company will be donated to the evaluation with respect to the valuation criteria that depend on a value court, and then the envelopes presented by the companies will be opened.

The evaluation report on the quantifiable award criteria includes a judgment on the value of each offer and will be published in the UAB contractor profile.

Once the public act of opening the envelopes is completed, the bidding companies present can record before the table all the observations they consider necessary, which should be reflected in the minutes.

13.6. The table may solicit and admit the clarification or the list of errors in the offers that follow of a material or formal type, not substantial and not impeding the meaning of the offer, as long as the clarification or the list does not entail a modification or concretion of the offer, with the aim of guaranteeing the principle d'equialtat de tracte between bidding companies.

Requests for clarifications or statements are made through the functionality that is provided by the Digital Envelope e-mail, which will send an electronic mail to the address or information provided by the bidding companies in the registration form, with the application for which access the space in which you have to provide the corresponding documentation.

These requests for information or clarification will be communicated to the company through electronic communication through e-NOTUM, in accordance with clause 6 of this plec.

They will be excluded from the tender, with a reasoned resolution, the companies whose proposals do not agree with the documentation examined and admitted, which exceed the budget base of the tender, substantially modify the proposal models established in this plec, entail a manifest error in the amount of the proposal and those in which The bidding company recognized the existence of an error or inconsistency that made it unfeasible.

The existence of errors in the economic proposals of the bidding companies implies the exclusion of these from the contracting procedure, which may affect the principle of equality, in the cases of errors that prevent the determination of both character and who is the price actually offered by the companies and, therefore, prevent them from carrying out the evaluation of the offers.

The exclusion agreements of the bidding companies adopted by the table are susceptible to challenge in the terms established in clause 34 of this plec.

14. Tie Breaking

In case two or more offers have obtained the total score, the tie is resolved through the application by order of the following social criteria, referred to at the time of finalizing the term of presentation of proposals:

- 1) Provide equal opportunities for people with disabilities.
- 2) Higher percentage of disabled workers in situations of social exclusion in the company cadastral template; In the case of equality, the highest name of employees with disabilities in the workforce must prevail, or the highest name of employees included in the workforce.
- 3) Lower percentage of temporary contracts in the workforce of companies.
- 4) Have a gender equality plan.
- 5) Higher percentage of employees in the workforce of companies.
- 6) Have a protocol against sexual assets, assets per sex, sexual orientation, gender identity or expression.
- 7) The draw, in case the application of the previous criteria is not done, will result in a tiebreaker.

Bidding companies must provide documentation proving the tie-breaking criteria at the time the tie is produced, and not in advance.

15. Abnormally low offers

The determination of offers that present abnormal values has to last depending on the limits and the objective parameters established in section M of the QR.

In the event that one or more of the bids submitted are found to be abnormal, the contracting committee will require the bidders to present the bid so that they can justify and break down in reasonable and detailed detail the lower level of the bids, or costs, or any other parameter on the basis of which the bid has been defined. abnormality of the offer. For this reason, the board will require from the bidders the details that it considers appropriate regarding the feasibility of the offer and the pertinent justifications.

The bidding company will have a period of 5 business days to present the information and documents that are relevant to these purposes.

Requests for justification are finalized through the functionality that is provided by the Digital Envelope e-mail, which will send an electronic mail to the address or the details provided by the bidding companies in the registration form, with the registration form for which you can access The space in which they have to provide the corresponding documentation.

This requirement is communicated to the company through electronic communication through e-NOTUM, in accordance with clause 6 of this plec.

After completing this term, if the contracting committee does not provide the information and supporting documentation requested, it will not be considered in consultation with the contracting body and it will be considered that the proposal cannot be completed, leaving the bidding company exempt from the procedure.

If the table replies the information and supporting documentation requested before completion, it will evaluate and submit the corresponding proposal for acceptance or rejection of the proposal, fully motivated, to the contracting body, so that this decides, prior to the technical assessment of the corresponding service, or l'acceptació de l'oferta, perquè it considers its viability accredited, or bé, conversely, its rebutig.

The contracting body will rebut offers that are presumed abnormal if they are based on inappropriate hypotheses or practices from a technical, economic or legal perspective. However, it will rebut the offers if it proves that they are abnormally low because they violate the regulations on subcontracting or do not complete the applicable obligations in environmental, social or labor matters, national or international, including the non-compliance of the current collective sectoral agreements, in application of the one established in article 201 of the LCSP.

16. Classification of offers and requirement of documentation prior to award

16.1. Once the offers have been evaluated, the contracting committee will submit to the contracting body the proposal for classification of the offers by order of decreasing score and, subsequently, forward to the contracting body the corresponding award proposal.

Once the contracting body has accepted the table's proposal, the Contracting Unit Administrative of the UAB will require the bidder to present the best offer so that within the term of 10 working days comptats from the end of the receipt of the request, present the documentation to which it is required below.

This request will be made through electronic notification through e-NOTUM, in accordance with clause 6 of this plec.

Documentation is provided for a long time through the functionality provided by the Digital Envelope e-mail, which will send an email to the address or the information provided by the bidding companies in the registration form, along with the entry for which access is made. The space in which they have to provide the corresponding documentation.

The bidding company that has submitted the best offer will have to provide the following documentation (this documentation, if necessary, will also have time to provide for the companies to the qualifications for which it is covered):

A) Companies NOT registered in RELI or ROLECE:

- Corresponding documentation accrediting the capacity to act and the legal personality, in accordance with the provisions of clause 7 of this plec.
- Documents accrediting the representation and legal personality of the signatories of the offers:
 - Power to compare or sign propositions.
 - NIF or passport of attorney.
- Documentation accrediting compliance with the specific solvency requirements of the agreement specified in section J.2 of the QR.
- Document accrediting the deposit of the definitive guarantee to the Caixa General de Pòsits of the Generalitat de Catalunya or authorization to withhold the amount in accordance with clause 18.3 of this plec (following the model of authorization facilitated by the UAB).
- Documents justifying that the company is responsible for the current tax obligations and Social Security obligations:

a) In relation to the Tax on Economic Activities:

- If the company proposed to be awarded the contract is subject to the Tax on Economic Activities and is obliged to pay this tax, it must present the document of registration of the tax relating to the current exercise in the heading corresponding to the object of the contract or the first tax refund, if accompanies a responsible declaration of not having a low-income status in the Impost registration.
- If the proposed company is subject to any exemption assumption listed in section 1 of article 82 of the Text of the Regulatory Law of Local Governments, approved by Royal Legislative Decree 2/2004, of March 5, it will provide a responsible declaration that must specify the legal assumption d'exempció and the declaration document in the census of tax-obligated persons.

b) In relation to the rest of the tax obligations and the Social Security obligations:

- Positive certificate from the State Tax Administration Agency proving that the company is responsible for the current tax obligations and the non-existence of tax natural debts with the State.
- Positive certification, also by the Social Security Treasury, is provided to the current in compliance with Social Security obligations.
- Positive certificate, in addition to delegated and territorial interventions, accrediting that the company is responsible for the current tax obligations with the Administration of the Generalitat of Catalonia.
- If necessary, if required in section J.3 of the QR, documents accrediting the effective availability of those who have agreed to dedicate or attach themselves to the execution of the contract.
- If escau, if required in section J.4 of the QR, certificats accreditation of the compliance of the standards of guarantee of quality and environmental management.
- If not, in case the company resorts to the capabilities of other entities, the commitment to make available the necessary resources is referred to in article 75.2 of the LCSP.

- If escaut, in case the definitive guarantee has not been constituted by the withholding of the price, a document accrediting the constitution of the guarantee, in accordance with the one established in clause 18.2 of this plec.

- If escaut, in case it is required in section C.5 of the QR, keep proof of having made the payment of the corresponding advertising fees.

B) Companies registered in RELI or ROLECE:

- Document accrediting the deposit of the definitive guarantee to the Caixa General de Pòsits of the Generalitat de Catalunya or authorization to withhold the amount in accordance with clause 18.3 of this plec (following the model of authorization facilitated by the UAB).

- In case the information contained in the RELI or ROLECE is not up to date at the time of presentation of the documentation, the necessary documentation must be provided to prove the current situation of the registered company.

- If necessary, if required in section J.3 of the QR, documents accrediting the effective availability of those who have agreed to dedicate or attach themselves to the execution of the contract.

- If escau, if required in section J.4 of the QR, certificats accreditation of the compliance of the standards of guarantee of quality and environmental management.

- If not, in case the company resorts to the capabilities of other entities, the commitment to make available the necessary resources is referred to in article 75.2 of the LCSP.

- If escaut, in case it is required in section C.5 of the QR, keep proof of having made the payment of the corresponding advertising fees.

16.2. A copy provided by the bidding company that has presented the highest bid with the required documentation, this will qualify. If it is observed that there are defects or errors of a menable nature in the documentation presented, the affected company must be notified so that they can be corrected or corrected within a maximum of 3 business days.

Requests for submissions are valid for a long time through the functionality provided by the Digital Envelope line, which will send an email to the address or information submitted by the company or bidding companies in the registration form, with the application for which access the space in which you have to provide the corresponding documentation.

These data requests will be communicated to the company through electronic communication through e-NOTUM, in accordance with clause 6 of this plec.

16.3. In the case that the requirement for documentation is not adequately fulfilled in the final assessment, or in the final analysis given by the contracting table, it will be understood that the bidding company has withdrawn the second offer and the Administrative Contracting Unit will proceed to request the material documentation from the bidding company as follows, however The order in which the offers are classified. This fet entails the requirement of the amount of 3% of the tender base price, excluding VAT, as a penalty, which is primarily effective against the provisional guarantee that, in the second case, is made up and, in addition, can donate lloc to declare the company prohibited from contracting for the cause provided for in article 71.2.a) of the LCSP.

Així mateix, the eventual falsification in there declaration by the bidding companies in the DEUC or in other declarations that may donate lloc to the cause of prohibition of contracting in the public sector provided for in article 71.1.e) of the LCSP.

17. Award of the marc agreement

Once the documentation required by clause 16 has been submitted, the contracting body must agree to the award of the agreement to the company or the companies proposed to be awarded, within a period of 5 business days following receipt of this documentation.

The tender cannot be declared void if there is any proposal that remains admissible in accordance with the criteria that appear in this plec. The declaration, in the second case, that this procedure has remained deserted will be published in the contractant's profile.

The award resolution must be notified to the bidders with electronic notification through e-NOTUM, in accordance with clause 6 of this plec and must be published in the contractant's profile within 15 calendar days, indicating the term in which it will take time to proceed with the award. formalization of the contract.

For this purpose, a notice of the inn will be sent at the disposal of the notification to the email address that the bidding companies designate in presenting the six proposals (and to the mobile phone if it has been informed). However, the email will continue to link to access it.

18. Guarantees

18.1. The provisional guarantee is only payable when it is established in section G.1 of the QR and for the amount that is determined. It is possible to constitute any of the forms provided for in section 2 of this clause.

The provisional guarantee automatically expires and will be returned to the bidding companies immediately after the completion of the contract. In all cases, the provisional guarantee must be returned to the selected bidder as the awardee when it constitutes the definitive guarantee, and the amount of the provisional guarantee can be applied to the definitive one or proceed to a new constitution of the latter.

18.2. The amount of the definitive guarantee is the one that is sent to apartment G.2 of the QR.

18.3. Section G.3 of the QR indicates the options available to the company proposed for the award to constitute the definitive guarantee in accordance with article 108 of the LCSP:

- In case the company opts to constitute the mitjançant the diploma to the Caixa General de Dipòsits of the Generalitat de Catalunya, it is possible to constitute in any of the following forms:
 - a) In effect, in public debt values both subject, in each case, to the conditions established by regulations. The effect and the immobilization certificates on the recorded values must be deposited in the General Deposit Fund of the General Treasury of the Generalitat de Catalunya or in the deposit boxes of the territorial treasury.
 - b) Mitjançant aval, provided in the form and conditions established by regulation, by some of the banks, caixes d'estalvi, cooperatives de credit, establiments financers de credit and reciprocal guarantee societies authorized to operate in Spain, which must be deposited in some of the establishments established in l'apartat a).
 - c) Mitjançant contract of security insurance with an insurance entity authorized to operate in the form and conditions established by regulations. The insurance certificate must be filed at the authorized establishments in the apartment a).
- In case the company opted to constitute the mitjançant withheld it in the budget, the UAB will apply a withholding on the first issued invoice. In the event that the amount of this invoice is not sufficient to cover the amount of the guarantee, it is necessary to withhold it on subsequent invoices in order to retain the corresponding amount.

At the time that the UAB requires the guarantee prior to the award of the contract, the company must present the deposit receipt of the guarantee to the General Bank or the retention authorization according to the authorization model facilitated by the UAB.

18.4. In the case of UTE, if the provisional or definitive guarantee has been deposited in the General Fund of Dipòsits, it can be constituted by one or several of the participating companies, as long as together it reaches the amount required in section G.2 of the QR and guarantees solidarity to all the companies that are members of the UTE.

18.5. The definitive guarantee answers:

- a) Of the obligation to formalize the contract within the term, to comply with clause 19 from this plec.
- b) Of the penalties imposed on the contractor in accordance with clause 26.2 of this plec.
- c) Of the correct execution of the services provided for in the contract, including the amounts that the contractor has offered and has been accepted by the UAB, of the expenses incurred by the UAB due to the contractor's delay in fulfilling the six obligations, and of the damages and damages caused to this both at the time of the execution of the contract or in its case. incompletion, which was not resolved as follows.
- d) Of the confiscation that can be decreed in cases of termination of the contract, according to both the one establishing this contract or the LCSP.
- e) The absence of defects or defects in the services provided during the term of the warranty that has been made provided for in the contract.

18.6. The term of warranty is the establishment of the G.4 apartment of the QR, which is valid from the date of receipt of the contract.

The return or cancellation of the definitive guarantee is carried out once upon the expiration of the guarantee term and the contract is satisfactorily completed, or resolved for reasons not attributable to the contractor.

In the case of partial receipt, the contractor can only request the return or cancellation of the proportional part of the guarantee that is expressly authorized by the G.4 apartment of the QR. _____

In the case of cessation of the contract, the guarantee provided by the assignor will not be returned or cancelled, for the purposes of which it constitutes that of the assignee.

18.7. As a result of the modification of the contract, its total value will vary, the guarantee constituted will take time to adjust to the necessary amount so that the correct proportion between the guarantee and the price of the contract in force at all times is maintained, within the term of 15 calendar days to be shared from the date in which it is I notified the company of the modification agreement.

For these purposes, price variations that are produced as a consequence of a review of the contract price in accordance with clause 3.4 of this plec will not be considered.

19. Formalització de l'acord marc

19.1. The agreement must be formalized in an administrative/privat document, with an advanced electronic signature based on a qualified or recognized electronic signature certificate.

19.2. Atès que, d'acord amb l'art. 44 of the LCSP, the award of the framework agreement is susceptible to special appeals in matters of contracting, the formalization of the framework agreement will be carried out after a minimum period of 15 business days from which the notification of the award is sent to the bidding companies.

Once again, the term provided for in the previous paragraph was passed, meaning that it was filed with appeals that led to the suspension of the formalization of the agreement, the Contracting Unit Administrative will require the awardee to formalize the agreement marked within a maximum of 5 calendar days to be shared from the end of receipt of the request.

19.3. When, for reasons attributable to the awardee, the mark agreement is not formalized in the terms established by the UAB, the amount of 3% of the tender base budget, VAT excluded, will be required as a penalty, which is first effective against the definitive guarantee, if it has been constituted. Furthermore, this potential donor requires declaring the company prohibited from contracting, in accordance with article 71.2.b) of the LCSP.

In the event that the marked agreement is not formalized by the winning company, it will be awarded to the company after it has presented the best offer of the agreement to the order in which the offers have been classified, with the prior presentation of the documentation to which it refers. Clause 16, the terms provided in the previous sections are not applicable.

If the agreement is not formalized in the term indicated for reasons attributable to the UAB, it will take time to compensate the awarding company for any damages or losses that the delay may cause.

19.4. The companies that have agreed to the commitment to establish themselves as a UTE are obliged to present, a document that has made the award of the agreement marked in their favor, the public deed of constitution of the UTE in which the name of the representative person or the sole representative of the union with sufficient powers to exercise the rights is included. and fulfill the obligations that are derived from the contract in order to be terminated.

19.5. In matters of data protection, prior to the formalization of the contract, the winning company will have to present a declaration in which it is possible to state that the servers will be located and from which it will provide the associated services to the materials, in accordance with clause 23 bis of this plec.

19.6 The framework agreement is perfect with the formalization and this is an essential requirement to be able to start the execution.

19.7 The Administrative Contracting Unit will send the announcement of the formalization to the OJEU within a maximum of 10 calendar days after the formalization of the framework agreement, for its publication. It will also be published in the contractant's profile, together with the signed contractual document, within a maximum of 15 calendar days after the formalization, a copy published in the OJEU.

19.8. Once the agreement is formalized, the Administrative Contracting Unit will inform the Public Contract Registry of the Generalitat of Catalonia, in order to register the basic contracts, the basic data, among which will be the identity of the awarding company, the amount of the contract awarded, together with the corresponding breakdown of VAT; and subsequently, if escau, the modifications, the extensions, the variations of terms or prices, the final amount and the termination of the contract.

The contractual data communicated to the public registry of contracts are publicly accessible, along with the limitations imposed by the regulations on data protection, as long as they do not have a confidential nature.

20. Decision not to award or sign the agreement marked and withdrawal

The UAB may decide not to award or subscribe the framework agreement, for reasons of public interest and justifications and with the corresponding notification to the bidding companies, apart from the formalization of the contract.

It is also possible to withdraw from the procedure, without the formalization of the framework agreement, notifying the bidding companies, when a non-mentable infringement of the contract preparation standards or the regulations of the award procedure is observed.

In both cases, the bidding companies will be compensated for any errors in which they have done incorrectly.

The decision not to award or sign the agreement and the withdrawal of the award procedure will be published in the contractant's profile.

21. Person responsible for the contract

The person responsible for the marking agreement, indicated in section N of the QR, exercises the following functions:

- Supervise the execution of the contract and adopt the decisions and dictate the necessary instructions with the aim of ensuring the correct performance of the service, within the powers granted by the contracting body.
- Issue the proposed report on the imposition of penalties.
- Issue the proposed modification report to the agreement contract with clause 27 of this plec.
- Issue a report on determining whether the delay in execution is a product per motius attributable to the contractor.

22. Award and formalization of contracts based on the framework agreement

22.1. The contracts based on the marc agreement will be awarded with the periodicity established by the department I.2.1 of the QR and the awarding department will be established in section I.2.2 of the QR.

The award system will be direct award by formalizing the agreement with a single supplier.

22.2. In accordance with articles 36.3 and 153.1 of the LCSP, contracts based on the agreement are perfected in the second award and formalization in an administrative document is not necessary.

23. Obligations of the contractor in the execution of basic contracts

23.1. The contract must be executed in accordance with that established in the clauses of this plec and those of the technical prescriptions plec and in accordance with the instructions that in the second interpretation give to the contracting company or companies the person responsible for the contract to which clause 21 of this plec refers, and of conform to the current provisions regarding public sector contracting.

23.2. The UAB will carry out the inspection, verification and surveillance for the correct execution of the contract and may dictate the appropriate instructions for the correct completion.

23.3. The special conditions in relation to the execution of the contract, are mandatory for the company or the contracting companies and, if not, for the company or the subcontracting companies, are those that are established in the O part of the QR.

23.4. The winning company remains obliged to execute the measures derived from Law 31/1995, of November 8, on the prevention of labor risks, and its regulatory development in all that it continued to apply.

The awardee must present, at the beginning of the service, an explanatory summary of the preventive modality adopted in matters of prevention of occupational risks. Així mateix, must communicate any changes in organization in matters of prevention of labor risks.

The awardees will have to present the evaluation of labor risks, along with the training and information of their employees in this matter. The awardee must nominate a security coordinator (maximum two), specific to the UAB, who will act as interlocutor with the UAB Prevention Service. This nomenament is based on the specific registration that can be requested through an email to a.prevencio.assistencia@uab.cat.

The awarding company must ensure that all its employees are aware of the internal health and safety regulations that exist at the UAB, as well as the emergency instructions established at the UAB.

The awarding company must monitor the compliance of the regulations by its employees within the UAB facilities. In order to donate compliance with the internal regulations of the UAB regarding prevention, it will be necessary for the company to access the ["Guide on safety and health matters for external companies"](#) I return complimentary [the return of the last page \(page 35\) to the UAB Prevention Service \(Edifici Rectorat, 1st floor\)](#); It can be downloaded from the UAB website https://intranet-nova.uab.es/doc/Guia_empresas_externes. The company only has to complete and finalize the recovery once, given that it has [different awards from the UAB](#).

In the contracts of maintenance, surveillance and security services, in accordance with Law 4/1997, civil protection of Catalonia, and in accordance with the General Campus Self-Protection Plan, in case of emergency, the contractor and all his workers must follow the orders of the Committee for Situations General Emergency Department (CSEG) and must collaborate in the control of the consequences of the emergency, under the orders of the General Intervention Team.

23.5. The contracting company must comply with the applicable obligations in environmental, social or labor matters established by the European Union law, the national law, the collective agreements or the international environmental, social and labor law provisions that link the State, and in particular those established by Annex V of the LCSP.

It is also obliged to comply with current provisions regarding the social integration of people with disabilities and tax authorities.

The non-compliance of the obligations in environmental, social or labor matters established and, in particular, the non-compliments or the repeated delays in the payment of salaries or the application of salary conditions lower than those derived from the collective agreements that continue to be fraudulent, will lead to the imposition of penalties to which it refers. clause 26.2 of this plec.

23.6. The contracting company is obliged to apply in executing the benefits inherent to the service the measures intended to promote equality between men and women.

23.7. The contracting company, in relation to the personal rights to which it has access at the time of the contract, is obliged to comply with all that establishes the Organic Law 3/2018, of December 5, on the protection of personal data and guarantee of digital rights, to the development regulations and to the one that establishes the Regulation (EU) 2016/679, of the European Parliament and of the Council, of April 27, 2016, relating to the protection of natural persons for the processing of personal data in the free circulation of these data and for which Directive 95/46/EC is repealed.

The documentation and information that is released or to which access can be made at the time of the execution of the services intended for this contract and which corresponds to the Contracting Administration responsible for the processing of personal data, is confidential and cannot be reproduced in whole or in part for its benefit or support. Therefore, neither processing nor computer editing nor transmission to third parties may be made outside the strict scope of the direct execution of the contract.

This obligation, in accordance with article 202.1 of the LCSP, is established with a special condition of execution of the contract, which also has the character of an essential contractual obligation, the non-compliance of which is considered non-compliance of a main obligation of the contract, is no cause for termination of the contract. mateix.

23.8. The awardee will transfer to the UAB the right of intellectual or industrial property as it relates to a contract to serve the object of which the development continued and the inn at the disposal of products protected by a right of intellectual or industrial property.

23.9. The awardee is responsible for the loss of transportation and personnel, and any others that are still imputable in accordance with current legislation, in particular, those derived from technical assistance during the warranty period.

23.10. If not, the awarding company must provide sufficient training to the personnel designated by the UAB for the correct execution of the service objective of this contract.

23.11. The awardee must present to the UAB:

- Monthly, a copy of the supporting documents for payments to the Social Security of the personnel your street (TC1 and TC2).
- Quarterly, a copy of the personal income tax return and withholdings (form 110 or 111).
- Semi-annually, a certificate of proof of current tax obligations with the Ministry of Finance and Social Security.
- Annually, a certificate accrediting being up to date with tax obligations both Department of Economy and Finance of the Generalitat of Catalonia.

23.12. In accordance with article 55.2 of Law 19/2014, of December 29, on transparency, access to public information and good governance, bidders and contractors assume the following obligations:

- a) Observe the principles, norms and ethical canons of the activities, offices and/or professions corresponding to the benefits objective of the contracts.
- b) Do not carry out actions that endanger the public interest.
- c) Report irregular situations that may arise in public contracting processes or during the execution of contracts.
- d) Refrain from engaging in conduct that may have the effect of impeding, restricting or falsifying competition, for example collusive or fraudulent competition behaviors (reservoir offers, elimination of offers, allocation of markets, rotation of offers, etc.).
- e) Respect the agreements and confidentiality rules.
- f) Collaborate with the contracting body in the actions that are carried out for the follow-up and/or evaluation of the completion of the contract, particularly facilitating the information that is still requested for these finalities and that the transparency legislation and the public sector contracts impose on the awardees in relation to the Administration or administrations of referència, without prejudice to the fulfillment of the transparency obligations that they pertain directly by legal provision.

These obligations are considered special conditions of execution of the contract.

22.13. The awardee will be in compliance with what is established by RD 1112/2018, of September 7, on the accessibility of web sites and applications for mobile devices in the public sector and, therefore, [UNE-EN 301 549 will apply. Accessibility requirements for ICT products and services](#) ". This standard is the official Spanish version of [EN 301 549 V2.1.2](#) of [\(2018-08\) Accessibility requirements for ICT products and](#) declared as a standard harmonized with the [Execution Decision \(EU\) 2018/2048](#) of the Commission, [services](#) December 20, 2018, which is equivalent to fulfilling all the A and AA level requirements of the [WCAG 2.1](#).

24. Special rules regarding the labor personnel of the contracting company

24.1. It is the exclusive responsibility of the contracting company to select the personnel who, meeting the qualification and experience requirements demanded in the plec, will form part of the work team assigned to the execution of the contract, without prejudice to the verification of the completion of those requirements by the person responsible for the contract.

The contracting company will ensure that there is stability in the work team, and that the variations in the composition remain punctual and obeixin for justified reasons, so as not to alter the proper functioning of the service, informing at all times to the person responsible for the contract.

24.2. The contracting company assumes the obligation to exercise in a real, effective and continuous manner, on the staff members of the work team in charge of execution, the management power inherent to the company. In particular, it will assume the negotiation and payment of salaries, the granting of permits, licenses and vacancies, the substitutions of workers in cases of leave or absence, the legal obligations in matters of Social Security, including the payment of contributions and the payment of benefits, if not, the legal obligations in matters of prevention of labor risks, the exercise of disciplinary power, along with all rights and obligations that arise from the contractual relationship between the employee and the employer.

24.3. The contracting company must especially ensure that the workers assigned to the execution of the contract carry out the activities without exceeding their limits in the functions carried out with respect to the activities delimited in the plec with the object of the contract.

24.4. The contracting company must designate a technical coordinator or responsible person integrated into its own staff, who will have among its six obligations:

- a) Act as the interlocutor of the contracting company leading to the UAB, channeling the communication between the contracting company and the staff members of the work team assigned to the contract, on one side, and the UAB, on the other hand, in all relation to the questions derived from the execution of the contract.
- b) Distribute the work among the personnel in charge of the execution of the contract, and donate to these workers the orders and work instructions that are necessary in relation to the provision of the contract service.
- c) Supervise the correct execution by the staff members of the work team of the functions they have in charge, as well as control the assistance of the personnel cited in the work team.
- d) Organize the vacation regime of the personnel assigned to the execution of the contract, having to adequately coordinate the contracting company with the UAB, in order not to alter the proper functioning of the service.
- e) Inform the UAB about the variations, occasional or permanent, in the composition of the work team assigned to the execution of the contract.

25. Payments to the contracting company

The contracting company is entitled to the payment of the price of the services effectively executed and formally rebutted by the UAB, in the manner determined in section H.3 of the QR.

Payment to the contracting company must be made upon presentation of an invoice, issued in accordance with current regulations, in the terms and conditions established in article 198 of the LCSP.

Therefore, the invoice must be presented in electronic format in accordance with current regulations, all information is available at <https://seuelectronica.uab.cat/factures-electroniques>.

In accordance with additional provision 32a of the LCSP, the contractor is obliged to present the invoice that he has made for the benefit of the corresponding administrative record for the purpose of the second transaction to the administrative body or unit to which the second processing corresponds. The invoice includes the details and requirements established in article 72 of the RGLCAP.

The adjudicator will issue the invoices in accordance with the payment schedule provided to the plec, a cop will issue the invoice, with the requirements and through the legally established channels, the university will have the terms of validation and payment established in article 198 of the LCSP.

26. Responsibility of the contracting company

The contractor is responsible for the technical quality of the work carried out at the end and for the services and services carried out, as well as for the consequences that are derived by the UAB or by third parties from any omissions, errors, inappropriate methods or incorrect conclusions in the execution of the contract.

The contracting company executes the contract at its own risk and is obliged to compensate the damages and losses that are caused to third parties as a result of the operations that require the execution of the contract, except in the case that the damages continue to be caused as a consequence of the immediate and direct order of the UAB.

27. Non-compliance

27.1. The contractor is obliged to comply with the agreement marked and the contract is based on the total term fixed for the subsequent execution, and also, if necessary, on the partial terms agreed for the subsequent execution.

If the contractor, for reasons that remain attributable to him, is in delay with respect to the completion of the total term or partial terms, the UAB may choose to respond to the circumstances of the case, for the resolution of the contract or for the imposition of the penalties established in clause 25.2 of this plec or, if no specific ones are established in this apartat, which establishes article 193 of the LCSP.

If the delay regarding the completion of the terms of the products per motius is not attributable to the contracting company and this offer is complied if the initial term of execution is extended, a term will be granted, at least, equal to the time lost, unless the contracting party demands a shorter period. This extension of the term of execution is not considered a modification of the contract for the purposes of the art. 203 i following of the LCSP.

27.2. In the event that the contractor, for reasons that remain attributable, fails to fulfill the commitments of the contract, the UAB may impose penalties proportional to the severity of the tax, of amounts not exceeding 10%, excluding VAT, nor exceeding a total of 50%.

Apart from the fulfillment of the obligations derived from the very execution of the object of the contract, these penalties cover the following non-compliance:

- a) Non-compliance with the special conditions of execution established in section O of the QR. _____
- b) Non-compliance with obligations in environmental, social or labor matters.

27.3. The amounts of the penalties that are imposed will be effective through the deduction of the amounts that, in the concept of total or partial payment, have to be paid to the contracting company or on the guarantee that, if escau, is made, as it is not possible to deduct from the current payments.

28. Prerogatives of the UAB

Regarding the limits and subject to the requirements and effects submitted to the LCSP, the UAB has the power to interpret the agreement and the contracts based on this, resolve the doubts that offer the compliment, modify it for reasons of public interest, declare the responsibility attributable to the contracting company start the execution, suspend the execution, agree on the resolution and determine the effects.

Therefore, the UAB has the powers to inspect the activities carried out by the contracting company during the execution of the contract, in the terms and within the limits established by the LCSP.

The agreements adopted by the contracting body in the exercise of the prerogatives established by administrative means are immediately executius.

The exercise of the prerogatives of the UAB is last until the end of the procedure established in article 191 of the LCSP.

29. Modification of the marked agreement and the basic contracts

29.1. The agreement marked in the contracts based on this name may be modified for reasons of public interest, in the cases and in the manner specified in this clause and in conformity with that provided for in articles 203 to 207 and 222 of the LCSP.

29.2. The unitary prices resulting from the modification of the framework agreement cannot exceed by 20% the prices prior to the modification and in some cases they cannot be higher prices than those that the companies part of the framework agreement offer in the market for the material products, without prejudice to the fact that the awardees may propose to the UAB the substitution of the lower awards. For others that incorporate technological advances or innovations that improve the benefits or characteristics of the awarded awards, as long as the price does not increase by more than 10% of the initial award.

29.3. If the price of the contract is determined by execution units, the variation that during the correct execution of the service will not be considered as a contractual modification is produced exclusively in the name of the actual execution units for which the contract provides, which can be collected in the settlement, as long as it does not represent an increase in the expense greater than 10% of the contract price.

29.4. In case section E of the QR provides for the possibility of modifying the agreement mark, the modification is permanent in the assumption(s), with the conditions, the supply and the limits that are detailed in the appointment section and agreement with the following procedure:

- The person responsible for the contract will issue a proposed report on the modification.
- The contracting body, if deemed necessary, will favorably resolve the modification of the contract.
- The UAB and the contractor will formalize the modification in an administrative/privat document in accordance with the art. 153 of the LCSP.

These modifications are obligatory for the contracting company.

29.5. In the event of a modification of the agreement that does not comply with the conditions of section E of the QR, it may only be carried out when it complies with the requirements and meets the assumptions provided for in article 205 of the LCSP, in accordance with the procedure regulated in article 191 of the LCSP and with the particularities. provided for in article 207 of the LCSP.

These modifications are obligatory for the contracting company, implying, individually or jointly, an alteration in the amount that exceeds 20% of the initial price of the contract, excluding VAT. In this case, the modification will be agreed by the contracting body with the prior written consent of the contracting company; Otherwise, the contract is resolved in accordance with the cause provided for in article 211.1.g) of the LCSP.

In this case, the procedure to follow will be the material that establishes section 2 of this clause.

29.6. The announcement of modification of the agreement, together with the submissions of the contracting company and all the reports that, if found, are requested prior to the approval of the modification, as well as those provided by the contracting company and those issued by the contracting body, will be published in the contractant profile.

30. Suspension

The agreement marks any of the contracts based on being suspended by agreement of the UAB or because the contractor opts to suspend the compliment, in case of delay in the payment of the price greater than 4 months, communicating to the UAB one month in advance.

In all cases, the UAB must issue the corresponding suspension report, ex officio or at the request of the contracting company, in accordance with the provisions of article 208.1 of the LCSP.

The suspension document, in accordance with article 103 of the RGLCAP, must be signed by a person representing the UAB and the contracting company and must be suspended within a maximum of 2 business days, including the day on which the suspension was agreed upon.

If found, the UAB must pay the contracting company the damages and losses that were actually caused by the suspension in accordance with the provisions of article 208.2 of the LCSP. The payment of damages and damages to the contracting company will only include the concepts that are indicated in this provision.

31. Succession and cession

31.1. In the event of a merger of companies in which the contracting company participates, the framework agreement or the basic contract will continue to be in force with the absorbing entity or with the entity resulting from the merger, which will be subrogated in all rights and obligations that arise.

In the event of separation, contribution or transfer of businesses or branches of activity, the agreement or contract will continue with the entity to which the contract is attributed, which will be subrogated to the rights and obligations that arise from it, provided that the conditions of qualification are met, absence of prohibition of contract and the solvency required in agreeing to the award of the contract or that the companies benefiting from these operations and, if subsisting, the company of which proving the assets,

companies or segregated branches, is jointly and severally responsible for the execution of the contract.

The contracting company must inform the contracting body of the circumstances in which it produced the product.

In the event that the contracting company followed a UTE, as long as it does not respect any of the companies that are members of the temporary joint venture, merger, division or transfer of branches of activity, the execution of the contract will continue with the awarding UTE. In the event that the absorbing company, the one resulting from the merger, the beneficiary of the division or the acquirer of the branch of activity, do not follow member companies of the UTE, it will be necessary that they maintain full capacity to act, do not incur a prohibition to contract and that is to maintain the solvency, the capacity or classification demanded.

If the contract is attributed to a different entity, the definitive guarantee can be renewed or replaced, at the discretion of the entity involved, by a new guarantee that the new entity subscribes, according to the risk that this last entity assumed. In all cases, the old definitive warranty remains valid for the purposes of the new warranty.

If the subrogation is not possible because the entity to which the time to attribute the contract does not meet the necessary solvency conditions, the contract is terminated, considered for all purposes as a termination assumption due to the fault of the contracting company.

31.2. The rights and obligations arising from this framework agreement or from any part of the contract based on it may be assigned by the contracting company to a third person, provided that the technical or personal qualities of those who assign it are not determinant of the award of the contract nor that the cessation does not result in an effective restriction of competition in the market, how complex the requirements established in the art are. 214 of the LCSP.

The transfer to a third person may not be authorized if the transfer entails a substantial alteration of the characteristics of the contracting company if these constitute an essential element of the contract.

The assigning company will be subrogated in all rights and obligations that correspond to the company that assigns the contract.

In the case of cessation of the contract, the guarantee provided by the assignor will not be returned or cancelled, for the purposes of which it constitutes that of the assignee.

32. Subcontracting

32.1. The contracting company may arrange with other companies the partial performance of the service provided for in this agreement if this is provided for in section R of the QR.

The celebration of subcontracts is subject to compliance with the requirements of the remaining circumstances regulated in article 215 of the LCSP.

The subcontracting companies will be obligated only by the main contracting company, which will assume full responsibility for the execution of the UAB contract, in accordance with both this contract and the terms of the contract, including the fulfillment of the obligations in environmental, social or labor matters. The knowledge that the UAB holds the contracts signed or the authorization granted does not alter the exclusive responsibility of the main contracting company.

32.2. The contracting company must communicate in writing, after the award of the contract and, very late, when the execution has begun, to the contracting body of the intention to subscribe subcontracts, indicating the part of the service that it intends to subcontract and the identity, contact information and the legal representative or representatives of The subcontracting company, sufficiently justifying its ability to execute it by reference to the technical and human elements available to it in its experience, and proving that it is not a problem incurring in a prohibition of contracting.

If the subcontracting company has the appropriate classification to carry out the part of the contract object of the subcontracting, the communication of this circumstance is sufficient to prove its aptitude.

32.3. Payment to subcontracting companies and supplying companies is regulated by articles 216 and 217 of the LCSP.

Subcontracting companies do not have direct action with the UAB regarding the specific obligations of the contracting company, as a consequence of the execution of the main contract or the subcontractors.

32.4. In contracts in which the subcontracting amount remains equal to or greater than 30% of the contract price, the UAB will ensure strict compliance with payment to the subcontracting companies and the supplying companies on behalf of the contracting company. For these purposes, the contracting company will have to provide, when requested, a detailed list of the subcontracting companies or supplying companies with specifications of the conditions related to the term of payment and will have to present the proof of completion of the payment in term. These obligations are considered a special condition of execution, so that failure to comply may entail the imposition of the penalties provided for in clause 25 of this plec, which is the definitive guarantee of these penalties.

33. Receipt and settlement of the framework agreement or the basic contracts

33.1. The reception and settlement of the contract will be carried out in accordance with the provisions of articles 210 and 311 of the LCSP and article 204 of the RGLCAP, without prejudice to the provisions of article 315.1 of the LCSP for service contracts that consist of the complete elaboration of work projects.

The contract will be understood by the contractor who has completed the entirety of its object, in accordance with the terms established by the contract to the full satisfaction of the UAB.

In all cases, the person responsible for the contract will issue a receipt document for the month following the execution of the object of the contract. The calculation of the warranty term established in section G.4 of the QR will begin with the signature of the receipt document.

The UAB will determine whether the service provided by the contracting company complies with the requirements established for the execution and completion and, if so, will require the performance of the contracted services and the analysis of any defects observed at the time of the reception. If the work carried out is not in accordance with the contracted service, as a result of vices or defects attributable to the contracting company, it may be reversed so that it will be exempt from the obligation to pay or will be entitled, if not possible, to the recovery of the satisfied price.

33.2. If escaping, within a maximum of one month from the date of the receipt document, the contractor must be agreed upon and notified of the corresponding settlement of the contract and the resulting balance must be paid if it is escaping.

34. Resolution of the agreement mark

The causes, application and effects of termination of the contract are established in articles 211, 212, 213 and 313 of the LCSP.

In particular, failure to comply with the essential contractual obligations established in section P of the QR will be cause for termination of the contract. In addition to the conditions established in the cited apartments, in all cases it is considered an essential condition of the contract the dedication of the personal mitjans and/or sufficient materials for its correct execution.

In all cases, the resolution of the contract is final in accordance with the procedure established in article 191 of the LCSP and in article 109 of the RGLCAP.

35. Regime of resources and competent jurisdiction

35.1. This administrative procedure and the contentious questions that may arise in relation to the preparation, the award, the effects, the modification and the termination of the contract, will be resolved by the contracting body, the resolutions of which exhaust the administrative route.

35.2. They are subject to special appeals in matters of contract, in accordance with article 44 of the LCSP, the tender notices, the plecs and the contractual documents that establish the conditions that must govern the contract; The procedural acts that decide directly or indirectly on the award, determine the impossibility of continuing the procedure or production without defense or irreparable damage to rights or legitimate interests; the contract award agreements; and the modifications of the

contract based on the non-compliance of the establishment in articles 204 and 205 of the LCSP, understanding that the modification would have been the object of a new award.

These appeals are of a discretionary nature, and are free for the applicants, and may be filed in the llocs established by article 16.4 of the LPAC, in the registry of the UAB or in the Catalan Court of Public Sector Contracts, prior or alternatively, to the filing of the administrative contentious appeal, in accordance with the Law 29/1998, of June 13, regulating contentious administrative jurisdiction, governs the provisions of articles 44 and the following of the LCSP and Royal Decree 814/2015, of September 11, which approves the Regulation of special procedures for the review of decisions in contractual matters. Court organization Central Administrative Contractual Resources.

If the writ of interposition of the appeal is presented in a register different from that of the UAB or the Catalan Public Sector Contracts Court, it must be communicated to the Court immediately and in the quickest way possible.

The filing of ordinary administrative appeals is not admissible against acts susceptible to special appeals.

35.3. Against the acts adopted by the UAB in relation to these effects, the modification and the termination of this contract that are no longer susceptible to special appeals in matters of contract, the filing of the ordinary administrative appeal that corresponds to the agreement established by the LRJP and the LPAC will proceed; or the administrative contentious appeals, in accordance with the provisions of Law 29/1998, of July 13, regulating administrative contentious jurisdiction.

35.4. The agreements that the UAB adopted in the exercise of the prerogatives established in clause 27 of this plec are susceptible to potential repositioning appeals, in accordance with the provisions of the LRJP and the basic legislation of the common administrative procedure, or of administrative contentious appeals, in accordance with the provided by Law 29/1998, of July 13, regulating contentious administrative jurisdiction.

36. Joint contracting

The UAB and FUAB have reached an agreement to carry out a specific joint contract for the service agreement that established the art. 31 of the LCSP, by which the UAB finalizes the award of the agreement marked in its own name and also in the name and on behalf of the entities of the UAB Corporation identified in section A.1 of the QR.

For the purposes of what is established in articles 3 and 61 of the LCSP, both the UAB and FUAB act in this procedure as individual contracting authorities. The FUAB has delegated to the UAB the powers that correspond to the contracting body for the purpose of the resolution of the award of the mark agreement, in accordance with the corresponding collaboration agreement.

Consequently, this procedure will result in 2 independent contracts, one per entity.

Keep in mind that the FUAB is a public sector entity that is considered a contracting authority that does not have the character of public administration and, therefore, in accordance with article 26.1.b of the LCSP, the contract corresponding to the service that the adjudicator will have to provide to this entity is considered a private contract, to the which will be applicable to the particularities established in articles 26.3 of the LCSP in relation to the effects and termination of private contracts.

Quant to the jurisdiction competent to resolve disputes arising during the execution of the contract formalized by the FUAB to take into account:

ÿ That is in accordance with what is foreseen in the art. 27.1.d of the LCSP, the contentious administrative jurisdiction will be competent to resolve the questions that affect the preparation and award of the contract object of this tender.

ÿ That according to what is provided for in article 27.2.d of the LCSP, the civil jurisdictional body will be competent to resolve the controversies between the parties in relation to the effects, compliance and termination of the contract object of this tender, with the exception of the contractual modifications established in the letters b) ic) of the article 27.1 of the LCSP. The parts are expressly submitted to the jurisdiction and competence of the judiciary and courts of the city of Barcelona, with waiver of any other fur that the parties may correspond to.

IMPORTANT NOTE: To this end, all references to the UAB in this case are intended to refer to the UAB/ FUAB as far as natural resources are concerned.
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[Please inform favorably from the UAB Legal Office on 07/11/2024.]

ANNEX 1

OFFER MODEL WITH AUTOMATIC VALUATION CRITERIA

Corporate name of the bidding company:

NIF of the bidding company:

Name and cognoms legal representative:

NIF legal representative:

Contract number: CONTR-108/2024

Object: Agreement with the approval of a single supplier for the execution of the service consisting of the creative task, the design, the elaboration of style guidelines and the development and production of all the elements and eines necessary, in any format, to donate support to the communication and promotion strategies of the company. Autonomous University of Barcelona (UAB), as one of the entities of the Corporation UAB (in addition, FUAB):

The signatory states that he/she coneix the plec of particular administrative clauses and the plec of technical prescriptions that serve as a basis for the call, that he/she unconditionally accepts the six clauses and specifications, that he/she brings together all and each of the conditions required to contract with the UAB and is committed, in name own / of the company it represents, to carry out the service with strict subjection to the expressed requirements and conditions, for the import as follows:

Maximum budget ANNUAL (VAT excl.)	Economic offer (Criteri II.1)				
	Import Functions /time (VAT excl.)	Types diva	Quota diva	Import / hour (VAT included)	
€45/ hour	Cap d'equip senior	0.00 €	% 0.00 €	0.00 €	0.00 €
€40/ hour	Senior designer Senior	% 0.00 €	0.00 €	% 0.00	0.00 €
€30/ hour	layout designer	€			0.00 €

2. Equip professional: technician executing the service (Criteri II.2)*

The experience of the members of the professional team assigned to the service greater than the minimum of 5 years requires the plec of technical prescriptions of the tender, is the following:

Functions	Name of professionals [...] [...]	Experience
Senior team cap	[...]	[...] years
Senior Designer(s)		[...] years
Senior layout artist/s		[...] years

(In the case of incorporating the work team more than a person who performs the functions of senior designer and senior layout designer will have in total the accumulated experience of each of the members of the team).

2.2.2. Demonstrated experience in projects creatius dins de l'ambit de l'Educació Superior *

Yeah

☐

No

☐

Company names

☐

2.2.3. Incorporation of a 24/7 customer service in all phases of the project.*

Yeah

☐

No

☐

*Only the tenderer who followed the proposal to award the award will have to present the supporting information for the claim.

Data and signature of the bidder